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Superior Court of California,
County of Los Angeles
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David W. Slayton,
Executive Officer/Clerk of Court,
By O. Chaparyan, Deputy Clerk

11 **SUPERIOR COURT OF CALIFORNIA**

12 **COUNTY OF LOS ANGELES**

13 LVNV Funding LLC,
14 Plaintiff,

15 vs.

16 Adrian A Alcala an individual
17 and DOES 1 through 100
18 Defendant.

Case No. 24CHLC00669

**DECLARATION IN SUPPORT OF
DEFAULT**

19 I, Christopher D. Mandarich, declare as follows:

- 20 1. I am an attorney at law duly licensed to practice before all courts in the State of California,
21 and before this honorable Court. I am the attorney for the law firm Mandarich Law Group,
22 LLP and an attorney of record for Plaintiff, LVNV Funding LLC. I have personal
23 knowledge of the facts set forth herein and if called to testify, I could and would do so
24 competently under oath.
- 25 2. The Court rejected Plaintiff's default judgment with the following note: "Reject court
26 Judgment because the interest appears excessive/unconscionable under the circumstances,
27 including without limitation in relation to principal amount due and apparent delay from
28 charge-off to filing of default packet. Plaintiff must submit a declaration regarding the
apparent delay or other circumstances, and resubmit the entire default package."

- 1 3. Plaintiff submits this declaration to address the concerns regarding prejudgment interest and
2 the timing of the default judgment request.
- 3 4. Under California Civil Code § 3287(a), "[a] person who is entitled to recover damages that
4 are 'certain, or capable of being made certain by calculation' is also entitled to recover
5 prejudgment interest on that amount from the date that the right to recover arose." (*Collins v.*
6 *City of Los Angeles*, 205 Cal.App.4th 140, 150-151 (2012)).
- 7
8 5. Pursuant to section 3287(a), "the trial court has no discretion - it must award prejudgment
9 interest from the first day there exists both a breach and a liquidated claim." (*Watson*
10 *Bowman Acme Corp. v. RGW Construction, Inc.*, 2 Cal.App.5th 279, 293 (2016)); *Rogers*.
- 11 6. The language of the statute entitles Plaintiff to recover interest without establishing a
12 particular procedure to request prejudgment interest. "No statutes specify the timing or
13 mechanism for seeking prejudgment interest ... [and] no rule of court specifies when
14 prejudgment interest must be sought." (*Watson Bowman Acme Corp. v. RGW Construction,*
15 *Inc.*, 2 Cal.App.5th 279, 297 (2016); *Steiny & Co. v. Electric Supply Co.*, 79 Cal.App.4th
16 285, 294 (2000)). However, California case law establishes that a motion for prejudgment
17 interest is "timely if made within the 'time limits for a motion for new trial (Code Civ. Proc.
18 § 659).'" (*Watson Bowman Acme Corp. v. RGW Construction, Inc.*, 2 Cal.App.5th 279, 297
19 (2016), quoting *Rogers*). The court in *Rogers*, held that:
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21 "In our view, prejudgment interest should be awarded in the judgment on the
22 basis of a specific request therefor made before entry of judgment. This view
23 is buttressed by California Rules of Court, rule 875, which provides: "The
24 clerk shall include in the judgment any interest awarded by the court and the
25 interest accrued since the entry of the verdict." (Cal. Rules of Court, rule
26 875.)"
- 27 7. By submitting the Declaration in Support of Calculation of accrued interest and attorney's
28 fees and requesting an award of pre-judgment interest in its proposed judgment before entry

1 of judgment, Plaintiff therefore satisfied the requirements set in Civil Code and California
2 case law.

- 3
- 4 8. Plaintiff seeks prejudgment interest at the statutory rate of 10% per annum pursuant to
5 California Civil Code § 3289(b), which governs contracts entered into after January 1, 1986,
6 where no legal rate of interest is otherwise specified. Although the contract at issue provides
7 for an interest rate in excess of 10%, Plaintiff is limiting its request to the statutory rate of
8 10%.
- 9 9. The amount of interest requested is lawful, reasonable, and consistent with both California
10 statutes and well-established case law.
- 11 10. Prejudgment interest is compensatory in nature, designed to make the Plaintiff whole for the
12 loss of use of funds caused by the Defendant's nonpayment. (*See Wisper Corp. v. California*
13 *Commerce Bank* (1996) 49 Cal.App.4th 948, 958.)
- 14 11. With respect to the timing of the default judgment filing, any delay following the charge-off
15 does not invalidate Plaintiff's entitlement to damages. The only valid legal limitation on
16 recovery is the statute of limitations — which was complied with in this case. No authority
17 supports denying prejudgment interest solely due to administrative or litigation timing,
18 where Plaintiff remains legally entitled to judgment.
- 19 12. As the court explained in *Cassinis v. Union Oil Co.* (1993) 14 Cal.App.4th 1770, 1790:
20 "The policy underlying authorization of an award of prejudgment interest is to compensate
21 the injured party--to make that party whole for the accrual of wealth which could have been
22 produced during the period of loss."
- 23 13. Plaintiff respectfully submits that the interest amount requested is neither excessive nor
24 unconscionable under the circumstances, and reflects a reasonable and statutorily supported
25 claim based on objective calculations.
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14. Plaintiff prays the Court accepts this explanation, finds the requested prejudgment interest proper and just under the law, and grants the default judgment upon resubmission of the complete package.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed at Chicago, Illinois on 8.21.25

MANDARICH LAW GROUP, LLP


[X] Christopher D. Mandarich, Esq.
Attorney for Plaintiff, LVNV Funding LLC